NEXT, as to caſes of ordinary public oppreſſion, where the vitals of the conſtitution are not attacked, the law hath alſo aſſigned a remedy. For, as a king cannot miſuſe his power, without the advice of evil counſellors, and the aſſiſtance of wicked miniſters, theſe men may be examined and puniſhed. The conſtitution has therefore provided, by means of indictments, and parliamentary impeachments, that no man ſhall dare to aſſiſt the crown in contradiction to the laws of the land. But it is at the ſame time a maxim in thoſe laws, that the king himſelf can do no wrong; ſince it would be a great weakneſs and abſurdity in any ſyſtem of poſitive law, to define any poſſible wrong, without any poſſible redreſs.

FOR, as to ſuch public oppreſſions as tend to diſſolve the conſtitution, and ſubvert the fundamentals of government, they are caſes which the law will not, out of decency, ſuppoſe; being incapable of diſtruſting thoſe, whom it has inveſted with any part of the ſupreme power; ſince ſuch diſtruſt would render the exerciſe of that power precarious and impracticable. For, wherever the law expreſſes it's diſtruſt of abuſe of power, it always veſts a ſuperior coercive authority in ſome other hand to correct it; the very notion of which deſtroys the idea of ſovereignty. If therefore (for example) the two houſes of parliament, or either of them, had avowedly a right to animadvert on the king, or each other, or if the king had a right to animadvert on either of the houſes, that branch of the legiſlature, ſo ſubject to animadverſion, would inſtantly ceaſe to be part of the ſupreme power; the ballance of the conſtitution would be overturned; and that branch or branches, in which this juriſdiction reſided, would be completely ſovereign. The ſuppoſition of *law* therefore is, that neither the king nor either houſe of parliament (collectively taken) is capable of doing any wrong; ſince in ſuch caſes the law feels itſelf incapable of furniſhing any adequate remedy. For which reaſon all oppreſſions, which may happen to ſpring from any branch of the ſovereign power, muſt neceſſarily be out of the

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